

SPECIFIC RELIEF ACT, 1877 (ACT I OF 1877)

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Document ID: specific_relief_act_1877	Enactment Date: 1877-02-07
Status: IN_FORCE	Official Source: https://pakistancode.gov.pk/english/specific_relief_act_1877
Subject Category: civil;injunction;declaratory_suit;contract_performance	Version: consolidated-2026

PREAMBLE: An Act / Ordinance to consolidate, amend and enact laws relating to Specific Relief Act, 1877 (Act I of 1877).

Section 42: Discretion of Court as to declaration of status or right

42: (Declaratory Suit)

Any person entitled to any legal character, or to any right as to any property, may institute a suit against any person denying, or interested to deny, his title to such character or right, and the Court may in its discretion make therein a declaration that he is so entitled, and the plaintiff need not in such suit ask for any further relief.

Section 54: Perpetual Injunctions when granted

54: (Perpetual Injunction)

Subject to the other provisions contained in or referred to by this Chapter, a perpetual injunction may be granted to prevent the breach of an obligation existing in favour of the applicant, whether expressly or by implication.